



NEVER SPLIT THE DIFFERENCE

Negotiating As If Your Life Depended On It

BY CHRIS VOSS



The Big “So What”

In this book, experienced FBI negotiator and award-winning teacher, Chris Voss, shares [tried-and-tested techniques for negotiations, that can be applied in a wide range of work and personal scenarios](#), from hostage situations to buying your house.



Introduction

What would you do if you were to receive a call that says, “We have your daughter. Give us \$1 million or she dies?” With more than 20 years’ experience as a hostage negotiator with the FBI, Voss was involved in a range of high-stakes situations and saw how the approach to negotiations has evolved over the years. After teaching and testing his techniques at various leading universities, he found that his experience could be applied to a wide range of work and personal life situations.

This is because [the fundamentals of human negotiations—be it to free a hostage, buy a car, or get a pay raise—are essentially the same. It boils down to the primal desire of getting what we want.](#) Although we try to evaluate our options logically, our final decisions are ultimately emotions-driven and irrational.



Negotiation Strategies and Tips

Establishing Rapport



Negotiations are essentially about building rapport and having a dialogue. To be a good negotiator, you must master your active listening skills and tools:

KEY QUOTES

“This book will teach you to reclaim control of the conversations that inform your life and career.”

“Kidnappers are just businessmen trying to get the best price.”

“Life is negotiation. The majority of the interactions we have at work and at home are negotiations that boil down to the expression of a simple, animalistic urge: I want.”

“The language of negotiation is primarily a language of conversation and rapport: a way of quickly establishing relationships and getting people to talk and think together.”



Hypothesize; don't assume. Smart negotiators expect surprises in negotiations and aren't fixated on their assumptions. Instead, they prepare various hypotheses of what the other party really wants, and focus on testing these hypotheses during the negotiations.



Listen fully. When others are talking, most of us don't really pay attention; we're too busy formulating our own arguments in our heads. Silence that inner dialogue, and focus on listening to what the other party has to say. In so doing, you make them feel safe and quieten their own internal voices.



Don't rush. Don't rush toward a resolution; it makes the other party feel like they're not being heard, and breaks the trust required for a proper conversation. To get the other party to talk about what they want, you must slow down, listen, validate their feelings and make them feel safe to engage in a dialogue.



Use the right tone of voice to influence emotions. When people are in a positive state, they think better and are more willing to collaborate. There are 3 key types of voices in negotiations:

- Most of the time, you should be using the “positive/playful voice”. Relax, smile, and speak slowly and clearly, to project the image of someone pleasant and amicable.
- Use the “late-night FM DJ voice” to make a point. Keep your voice calm, slow and warm, to project authority and trustworthiness. Make your statements using a downward voice inflection (which conveys you're in control), and use an upward inflection to invite a response.
- The “assertive voice” is rarely used, as it usually provokes the other party to push back.



Pause and encourage. Silence/pauses can be very effective for emphasis and to encourage the other party to talk freely. You can also use simple phrases like “Yes”, “OK”, “I see” to show that you're listening and encourage them to share more.



Humans instinctively trust what's familiar and fear what's different. **Use mirroring** to encourage the other party to talk more, build rapport and buy time to uncover their wants. Essentially, you're imitating the other person's speech patterns,

KEY QUOTES

“Negotiation is not an act of battle; it's a process of discovery. The goal is to uncover as much information as possible.”

“When you slow the process down, you also calm it down. After all, if someone is talking, they are not shooting.”

“When you radiate warmth and acceptance, conversations just seem to flow.”

tone, vocabulary etc. One technique is to repeat the last 3 words or 1-3 key words that someone just said.



Handling aggression. Imagine you're facing an aggressive boss who just asked you to redo a project by the end of the day. To get your way without direct confrontation:

- Use the "late-night FM DJ voice" to calm him. Start with "I'm sorry..." then mirror his words with an inquisitive tone (e.g. "I'm sorry, redo everything by today?"). Pause for at least 4s, so the mirror can work, then repeat the process in response to his reply.
- Instead of saying, "What do you mean?" or "That's impossible", this approach prompts your boss to explain what he wants and why. In so doing, he may realize he only needs you to redo part of the work, or he doesn't need it by today.

Showing Empathy and Building Trust



People feel good when they are heard and understood. **Focus on building a connection, not on getting what you want, to lay a strong foundation for the communication.** Practice these techniques until empathy becomes habitual to you.



Tactical empathy. Being empathetic doesn't mean you must agree with others. It's about putting yourself in their shoes and understanding them. In negotiations, tactical empathy shows that you're listening and encourages your counterpart to share more, so you know what motivates them and how to influence them.



Labeling. There's usually an underlying emotion beneath any behavior, e.g. someone who's aggressive may be acting out of underlying feelings of insecurity. Labeling is about validating someone's feelings, by giving it a name to show you understand how they feel, e.g. "It seems like you're worried about losing control of the situation."

- To label the emotion, you must first detect the feelings. Start by asking simple questions like, "How's your family?", and take close notice of their responses, e.g. they may say they're ok, but visibly tense up or frown.

KEY QUOTES

"Being right isn't the key to a successful negotiation—having the right mindset is."

"There is nothing more frustrating or disruptive to any negotiation than to get the feeling you are talking to someone who isn't listening."

"Empathy is not about being nice or agreeing with the other side. It's about understanding them."

"Empathy helps us learn the position the enemy is in, why their actions make sense (to them), and what might move them."

"Think of labeling as a shortcut to intimacy, a timesaving emotional hack."

- You can label using statements or questions, starting with “It seems like...”, “It looks like...” or “It sounds like”. Avoid starting with “I”, as it’s more likely to make the other party defensive. Once you’ve put out a label, be silent and listen.
- When you label negative feelings, it reduces their intensity. When you label positive feelings, it strengthens or amplifies them.

— The best way to deal with negative feelings is to get them out of the way asap.

- Denying a negative will only strengthen it. It’s better to acknowledge it without judgement, then replace it with a positive idea or solution. By stating the worst possible things upfront, you diffuse the emotions and make them less scary. It also makes people feel understood and removes barriers to communication.
- Use an accusation audit to disarm your opponent:
 - i. List down every bad thing or accusation that he/she can throw at you;
 - ii. Label the fears upfront (e.g. “I understand you think I’m abusing my authority” or “You may feel like I’m treating you unfairly”); and
 - iii. Ask for feedback or inputs.

The next time you encounter an angry customer or colleague, try using mirroring and labeling to diffuse the situation and turn it around.

Using “No” to Create Safety & Momentum



When someone says “Yes”, it doesn’t mean they agree with you. They could be avoiding conflict, or giving a quick response to a yes/no question. When someone is pushed to say “Yes” too quickly, it can make them feel defensive. Instead, invite them to say “No” to move your negotiation forward.

✗ What “No” really means. When someone says “No”, it’s often not a clear-cut rejection, but a way of saying “I’m not ready to agree yet”, “I need more information”, or “I need more time”.

KEY QUOTES

“Every one of us has an inherent, human need to be understood, to connect with the person across the table.”

“The fastest and most efficient means of establishing a quick working relationship is to acknowledge the negative and diffuse it.”

“‘No’ is the start of the negotiation, not the end of it.”

“Your invitation for the other side to say “No” has an amazing power to bring down barriers and allow for beneficial communication.”



Get from “No” to “Yes”. When someone has the ability to say “No”, it satisfies their primal need to feel safe and in control. Once someone has said “No”, you can nudge them forward with questions like, “What about this doesn’t work for you?” or “How could we make this work?”. This allows them to bring up the real issues, tell you what they want and don’t want, and feel ownership of the ideas/solutions.



Extracting a “No”. Not everyone is ready to voice their objections. You can nudge someone to say “No” by (a) deliberately mis-labeling their wants or feelings, or (b) asking them what they don’t want. Once they have voiced their objections, they tend to be more open to explore other options.



Getting a response. If someone has been ignoring you or your emails, you can use a No-oriented question that suggests you’re ready to walk away, e.g. “Have you given up on this deal?” or “Are you dropping this project?”. No one likes to be left behind or abandoned, and they’ll typically respond.

Getting Permission to Persuade: “That’s Right”



There are 2 magic words that can transform any negotiation, and are even better than “Yes”. The words are: “That’s Right”.



When people feel understood and affirmed, they are more likely to take constructive actions.

- “That’s right” may come in the form of a subtle realization, when the other party suddenly embraces something you’ve said, without even realizing their own shift.
- To influence change, you must first show an unconditional positive regard—to accept the other party as he/she is.



You can use a summary to trigger a “That’s Right”.

- This involves 2 elements: paraphrasing (repeating what the other party said in your own words) and labeling (acknowledging the underlying emotions).
- This requires that you listen carefully, so you can summarize what the other party thinks and feels. Once you get a “that’s

KEY QUOTES

“Good negotiators know that their job isn’t to put on a great performance but to gently guide their counterpart to discover their goal as his own.”

“Every ‘No’ gets me closer to a ‘Yes.’”

-Mark Cuban

“The sweetest two words in any negotiation are actually “That’s right”.

“The moment you’ve convinced someone that you truly understand her dreams and feelings..., mental and behavioral change becomes possible, and the foundation for a breakthrough has been laid.”

right”, you’d be in a better position to present how your solution helps them to achieve what they want.



“You’re right” are 2 of the worst words in negotiations. It means the person is just agreeing so you’ll shut up, and nothing will change.

Shaping Reality & Perceptions



Many people address conflicts by taking the middle ground. Good negotiation is about finding leverage in any situation and securing the best possible deal. Never split the difference.



Get time on your side. Time is one of the most critical components of a negotiation. Often, we’re afraid to lose out, and thus rush into decisions that are not in our best interests.

- Most deadlines are artificially created and can be changed. Remember this rule: “No deal is better than a bad deal.”
- If you know the other party’s drop-dead deadline, you can work it to your advantage, e.g. it’s usually easier to get a good deal toward the end of a month/quarter. If you have a firm deadline, make sure you start wheeling-and-dealing early enough, so you won’t be pressured to make a hasty decision at the end.



The perception of fairness is key to negotiations. People retaliate when they feel they’ve been treated unfairly, and make irrational choices just to reject that sense of unfairness.

- In Voss’ classes, he plays an “Ultimatum game”: students are split into pairs, a “proposer” is given \$10 and has to propose a split to an “accepter”. If the accepter agrees, both parties get the money; if he refuses, both sides get nothing. Most accepters will reject an offer that’s less than $\frac{1}{2}$ of what the other party gets, and will feel offended if it’s $\frac{1}{4}$ or less. No one agrees to a \$10/\$1 split, even though getting \$1 is better than getting \$0.
- Build a reputation for being a fair negotiator. You can also set the stage early in the negotiation by saying, “I want you to feel that you’re fairly treated at all times. Please stop me

KEY QUOTES

“There’s always leverage... We all have irrational blind spots, hidden needs, and undeveloped notions.”

“Don’t compromise. Meeting halfway often leads to bad deals for both sides.”

“Deadlines are often arbitrary, almost always flexible, and hardly ever trigger the consequences we think—or are told—they will.”

“While we may use logic to reason ourselves toward a decision, the actual decision making is governed by emotion.”

at any point if you feel I'm being unfair." If your counterpart tries to get concessions from you by saying the deal is unfair, stay calm and ask him to explain how it is so.



Bend their reality. Although our decisions are irrational and emotionally-driven, **there are mental patterns that can be used to influence decisions.** Identify the other party's emotional drivers (pain, problems and desires), then **show that (a) you can deliver what they want and (b) they'll lose something concrete if the deal falls through.**

- Before presenting your offer, , use an extreme anchor to bend the other party's reality and set low expectations. Imagine you need to renegotiate a contract from \$1000 to \$400. Start with an accusation audit to acknowledge all their worst fears (e.g. they'll probably lose the contract). Then, present the opportunity to retain the contract at just \$400. Most people will accept the deal.
- If possible, let the other party make the first offer; it gives a sense of their numbers, which may sometimes be higher than your intended closing figure.
- If you had to go first, set a range, e.g. if you're willing to close at \$1000, you can say "these services can go for as much as \$1300- \$1600 in top companies". The other party will often look at the lower end of the range.
- Go beyond monetary terms, so you don't end up bargaining purely on numbers. After setting a high anchor, you can offer other things of value to the other party.
- Use odd numbers. Round numbers (e.g. \$40,000) feel like estimates that can be negotiated, while an odd number like \$38,257 feels like a carefully calculated bottom-line figure.
- Throw in a surprise gift. After your extreme anchor and your counterpart's initial rejection, offer an unexpected (and unrelated) gift. This generates goodwill and the other party may feel obliged to consider your offer or give a counter-offer.

KEY QUOTES

"We are emotional, irrational beasts who are emotional and irrational in predictable, pattern-filled ways."

"Know the emotional drivers and you can frame the benefits of any deal in language that will resonate."

"The real value of anything depends on what vantage point you're looking at it from."

In the book, Voss shares how he used the techniques above to get a hostage back safely for \$4,751 and a portable CD stereo (which is a fraction of the initial \$150,000 ransom fee). You can also use this approach to negotiate a better salary, a business deal etc.

Creating the Illusion of Control



A good negotiation is not a wrestling match or a showdown, but a process of nudging the other party to reach the conclusion you want. To achieve this, you must put aside your ego and the need to be right. Let the other party believe they are in control and the solutions are theirs.

 The calibrated question is a powerful tool to affirm someone's views, make requests and introduce new ideas, while allowing the other party to feel in control. This shifts the negotiation from a confrontation into a joint problem-solving session. For example, instead of demanding "I want to speak with the hostage to know she's alive", you can ask: "How do I know the hostage is still alive?"

How to calibrate your question:

- Summarize the situation, then ask a "how" or "what" question, e.g. "How am I supposed to do that?", "What can I do to make this work?", or "How would you like me to proceed?". This prompts the other party to pause and consider the options.
- As a general rule of thumb, avoid questions that can be answered with a yes/no. Start your question with "what" or "how", but not "who", "when" and "where" as these can be answered factually without deep thought. "Why" questions should be used sparingly, since they may sound accusatory.
- To be effective, your questions must be carefully designed to nudge the conversation toward your goals, while having the other party think it's their choice.
- Your tone of voice is also crucial. Always ask the question calmly and respectfully. If done properly, it makes an aggressive or egoistical counterpart feel like you need his help to overcome the problem. Keep your emotions under

KEY QUOTES

"Let the other side feel victory. Let them think it was their idea. Subsume your ego."

"Negotiation (is) coaxing, not overcoming; co-opting, not defeating."

"The secret to gaining the upper hand in a negotiation is giving the other side the illusion of control."

"Asking for help in this manner...is an incredibly powerful negotiating technique for transforming encounters from confrontational showdowns into joint problem-solving sessions."

"The trick to 'How' questions is that, correctly used, they are gentle and graceful ways to say 'No' and guide your counterpart to develop a better solution—your solution."

control and don't counter-attack even if you're verbally attacked or insulted.

Ensure Execution



It's possible to get a "yes", only to have the deal unravel later. As a negotiator, you must observe both verbal and non-verbal cues carefully, to **make sure you have a real agreement that will be executed**.



Keep asking **"How" questions**: This keeps the other party engaged, helps you to say "No" without a direct refusal and addresses execution issues upfront (e.g. "How am I supposed to raise \$2mil?"). More importantly, it helps to create the illusion that they're in control, and the solutions are their ideas.



Consider the **entire team** on the other side, to ensure you're not missing decision-makers who're not at the negotiation table.

- Ask questions like: "How does this affect others?" and "How can we ensure we deliver the right solutions to the right people?"
- The use of pronouns also gives clues on the person's relative authority—those who use a lot of "I" or "me" tend to be less influential than those who use "we", or "them".



Learn to translate the **subtle cues** that tell you if the other party is lying or uncomfortable about the deal:

- The 7-38-55 percent rule (by Prof Mehrabian) says that only 7% of a message is conveyed via words; the other 38% comes from the tone of voice and 55% from the body/facial expressions. If possible, conduct face-to-face discussions, so you can look for inconsistencies that suggest things are not what they seem.
- Use the rule of three to test if you have a real "Yes", i.e. get the other party to agree to the same thing 3x in one conversation. Vary your approach each time so you can check for consistency in the responses—use labels, summaries,

KEY QUOTES

"'Yes' is nothing without 'How'."

"Remember that these are listener's tools...They're about using the counterpart's power to get to your objective."

and ask calibrated questions (e.g. “how will we know if we’re ontrack?” or “what could be the biggest challenge you foresee?”).

- Most people have certain giveaway signs when they lie, e.g. they may use more third-person pronouns (e.g. him, hers, them), or speak in more convoluted sentences.
- People tend to respond more favourably to you as a person. Use your name to break the ice, and make yourself “real”.



Use multiple “Nos” to get the other party to bid against themselves and give a better deal. Start with more indirect “Nos”, and gradually become firmer.

- You can start with calibrated questions (e.g. “How am I supposed to do that?”), which are an indirect way to refuse.
- After the other party makes a counter-offer, you can say “No” again, with a variation like, “Your offer is very generous, but I’m sorry, I’m afraid it won’t work for me.” By suggesting your counterpart is generous and apologizing, you trigger empathy.
- As you receive more counter-offers, stay firm and reinforce your position with a polite “I’m sorry, no”.

Facing the Professional Bargainers: Prepare Yourself



At some point, you’ll face seasoned negotiators who know similar techniques and will bargain hard. It’s vital to prepare thoroughly before getting to the negotiation table.



Know your/your counterpart’s negotiation style. Treat others the way *they* want to be treated, not how you’d like to be treated. There are 3 key negotiation styles.

- Analysts are detailed-oriented and systematic, but may seem aloof. They take pride in being patient, thorough and seek to minimize mistakes. If you’re an analyst, remember to smile more. If you’re dealing with an analyst, be prepared with data and comparisons and give them time to analyze options.

KEY QUOTES

“Don’t treat others the way you want to be treated; treat them the way they need to be treated.”

- Accommodators seek to build relationships and achieve win-win. They're usually sociable but may be poor time-managers and lack focus. If you're an Accomodator, learn to voice your objections and focus on your goals. If you're dealing with an Accomodator, watch for concessions that they can't deliver.
- Assertives want to get things done. They're usually direct, task-focused, and like to win (even at the expense of others). If you're an Assertive, learn to soften your tone and use calibrated questions/labeling. If you're dealing with an Assertive, listen carefully and show that you've understood them (or they won't listen to you); use mirroring, calibrated questions and summaries.



When you're facing an experienced negotiator, be ready to take punches (and to punch back).

- The other party may try to ruffle you with an extreme anchor. Stay calm, use multiple "Nos", or shift to other terms.
- If you're pushed to make the first offer, try making a generic statement that alludes to a range e.g. "Most good companies would charge \$1800-\$2,000 per day".



If things reach an impasse, you may need to shake things up while maintaining a collaborative climate. Avoid emotional escalation, and focus on the issue objectively.

- If someone poses a ridiculous offer, you can show a little anger and say "I don't see how this would ever work." This only works if the anger is real and you can keep it under control.
- "Why" questions generally make people defensive, but can be used to flip an uncertain situation to your benefit, e.g. "Why would you work with me instead of your established suppliers?"
- You can also use an "I" statement to create a strategic pause, e.g. "I feel _____ when you _____ because _____."
- Be ready to walk away. If you're clear on your bottomline and it's turning out to be a bad deal, walk away.

KEY QUOTES

"The person across the table is never the problem. The unsolved issue is. So focus on the issue."

"No deal is better than a bad deal...be willing to walk away."



Prepare an Akerman Plan. Use this process to help you predictably meet in the middle: Identify your goal or target price. Set your 1st offer (your extreme anchor) at 65% of your target price. Prepare 3 counter-offers at 85%, 95%, and 100% of your target price (each to be offered only after calibrated questions, “Nos”, and when the other side has made counter-offers). Use a specific non-round number (e.g. \$7,893) for your final figure and throw in a non-monetary item to show you’ve reached your limit.

Finding the Black Swans



The Black Swan is a metaphor for the “unknown unknowns”—events that seem impossible and can’t be predicted. Such hidden or unexpected information are hard to uncover, but can change everything in your negotiations. As a rule of thumb, Voss seeks to uncover at least 3 Black Swans in any negotiation.



Leverage comes from your ability to give what the other party wants, or make them lose what they value.

- Broadly, there are 3 types of leverage: *Positive leverage* is what you can give (or withhold) that the other party wants. *Negative leverage* is what the other party doesn’t want to lose (e.g. money, reputation, time). *Normative leverage* refers to the values or norms held by the other party that support your position, e.g. how your proposal is congruent with their principles.
- Your job is to identify your counterpart’s wants and fears, and convince them that they have more to lose without a deal.



To effectively influence someone, you must **know their worldview**. Keep an open mind and break out of your own frames of reference.

- Listen fully and put yourself in their world. Double-check everything you’ve heard and use backup listeners who may catch things that you miss.
- The Similarity Principle says that we tend to trust people who seem to be similar or familiar. You gain influence if

KEY QUOTES

“Black Swans are leverage multipliers. They give you the upper hand.”

“We are all to some degree blind...We do not know what we don’t know.”

“You want to see what language they speak, and speak back to them.”

“In any negotiation...it’s not how well you speak but how well you listen that determines your success.”

someone thinks you share their attitudes, beliefs, culture etc. Identify and highlight your common ground.

- When you show that you share others' passions and can help them to achieve their dreams and goals, they will naturally want to collaborate with you.



Don't be too quick to dismiss what you can't understand. [Dig deeper](#) and you may uncover a Black Swan. For example:

- People may see things differently due to incomplete or different information: find the info gaps and provide the missing info;
- The other party may seem evasive because they're operating under constraints (e.g. they can't make the decision, or lack certain resources to proceed); or
- They may simply be acting on a different set of interests that you haven't yet identified.



[To uncover the Black Swans:](#)

- Use face-to-face meetings if possible; the 7-38-55 rule says that a few minutes of face-time can beat days of research or emails;
- Pay attention to unguarded moments, e.g. before/after meetings, during a meal, or when someone says something unexpected; and
- Use calibrated questions and labels/mislabels to probe for additional information, constraints or other views/interests.



Putting it together: The 1-Page Negotiation Sheet

Voss recommends that you prepare thoroughly, then condense your strategy into 1 page and stay flexible during negotiations:



Prepare for the extremes by considering your best and worst-case scenarios. Then, write down [1 specific best-case goal](#), keeping an open mind to accept other better outcomes.

KEY QUOTES

"We're all hungry for a map to joy, and when someone is courageous enough to draw it for us, we naturally follow."

"When we are confronted by (the unknown), we ignore it, we run away, or we label it in ways that allow us to dismiss it."

"Remember: never be so sure of what you want that you wouldn't take something better."



Summarize (in a couple of sentences) the facts that've led to the negotiation, with the aim of getting the other party to say, "That's right." Ask yourself : What do you want (and why)? What do they want (and why)?



Consider how the other party will feel about your summary, and list down all the **possible accusations**. For each accusation, list down 3- 5 **labels** ("It seems like....").



Dig deeper into your counterparts' underlying motivations. Prepare 3-5 **calibrated questions** that will (a) highlight the value of your offer or (b) address potential deal-breakers. Remember to look at things from their viewpoint, not yours.



List down the **non-cash items** that you'd want from your counterpart. Ask yourself: What could they offer to make me do this for free?



Other Details in the Book to Look out For

Most of us are afraid of conflict and to push for what we want. Through this book, Voss hopes to help us overcome that fear and uncover value through negotiations. The book also includes useful details including:

- Background on our decision-making processes, and a brief history of how the approach to negotiation has evolved over the years;
- Detailed accounts of various hostage situations (e.g. bank robbery, kidnapping by rebels, prison siege), and Voss' personal mistakes, successes and learning points;
- Detailed case studies/examples of how the techniques were applied by Voss and his students in various scenarios: to close a sale, secure a promotion, change behavior on the football field, etc.; and
- More details on how to prepare your 1-page Negotiation Sheet.

KEY QUOTES

"Motivations are what they are worried about and what they hope for, even lust for."

"If this book accomplishes only one thing, I hope it gets you over that fear of conflict and encourages you to navigate it with empathy."